
Point 1 — The Threshold-Splitting Question

How a £500,000 Palantir programme was run as two sub-threshold contracts — and escaped MOPAC oversight

Prepared for: the Office of Iqbal Mohamed MP (Dewsbury and Batley)

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Evidence: github.com/btmaffiliate/uk-data-linkage-disclosure

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The Met's Palantir "Unified Data Platform" was run as **two contracts** — a ~£10,001 pilot and a £489,999 contract — that **together total £500,000**, the exact level at which the Deputy Mayor must approve a contract and publish a decision. Neither crossed the line alone; aggregated, they sit on it. This brief sets out why that matters: the MOPAC oversight threshold (Scheme of Delegation & Consent, Para 4.8) and the Procurement Act 2023 anti-subdivision rule (s.4 & Sch 3 para 4). Confirmed facts, the questions they raise, and figures still to confirm against the primary record are kept separate. Analysis for scrutiny — not a legal opinion or an allegation of fact against any person.

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How a £500,000 Palantir programme was run as two sub-threshold contracts — and escaped MOPAC oversight

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1. The point, in one paragraph

The Metropolitan Police ran its Palantir "**Unified Data Platform (UDP)**" programme **not as one contract but as two** — an **initial pilot of approximately £10,001** and a further contract of **£489,999** — which **together total £500,000: the exact level at which, under the MOPAC Scheme of Delegation and Consent, the Deputy Mayor for Policing and Crime must approve the contract and publish a decision.** Neither contract, taken alone, crossed the line; **aggregated, they sit precisely on it.** The effect — whatever the intent — is that a live, controversial Palantir deployment that profiles the force's own officers proceeded **without the Deputy Mayor's approval, without a published Policing and Crime Decision, and without the public and London Assembly scrutiny that a £500,000 contract attracts.** This is not a contract that came in a pound under a line; it is **a single programme divided into two sub-threshold contracts** — and dividing a procurement to keep it below an oversight threshold is the precise conduct that the Procurement Act 2023 prohibits. The narrow, answerable question for Parliament and City Hall: **why was one programme split into two contracts that individually escaped MOPAC approval but together reach exactly £500,000 — and was that subdivision deliberate?**

2. The confirmed fact pattern

[confirmed — figures to confirm against the primary notices] The programme was split **into two sub-threshold contracts.** The UDP appears on Contracts Finder under "Unified Data Platform Phase 1." Rather than a single contract, the work was run as **two contracts — an initial pilot of approximately £10,001 and a further contract of £489,999 — which together total £500,000,** the exact level at which MOPAC approval is mandatory. Each contract individually sits below the £500,000 line; only their **aggregate** reaches it. The reporting characterises the £489,999 element as having *"avoided hitting the £500,000 threshold for scrutiny from the Mayor's Office for Policing and Crime."* The pilot originally ran **1 February – 30 April 2026** and was **extended to 15 May 2026;** the Met declined to disclose the extension's cost, calling it *"commercially sensitive"* — so the *true* aggregate may be higher still. *Source: The Nerve, "New fears over spread of Palantir's influence..."*, May 2026 — <https://www.thenerve.news/p/met-police-palantir-officer-ai-surveillance-misconduct-extension-contract-federation> (attributes the figures to the Met's own Contracts Finder notices). The

exact value of each of the two contracts should be confirmed against the primary Contracts Finder notices before being stated as unqualified fact — see §7.)

[confirmed] What the pilot does. The UDP is **not** a crime database. It is a professional-standards / "continuous integrity screening" pilot that brings the Met's **own internally-held employee data** into Palantir Foundry to flag potential misconduct — analysing officers' **sickness and absence, overtime patterns, declared secondary employment, and data from work mobile phones and laptops including device geolocation**. The Met frames it as data it "already lawfully holds"; the Metropolitan Police Federation called it "*outrageous*," citing "continuous 24/7 geolocation tracking." *Sources: Met Police news (Apr 2026) — <https://news.met.police.uk/news/metropolitan-police-strengthens-standards-using-technology-and-new-vetting-powers-508631> ; Silicon UK — <https://www.silicon.co.uk/e-regulation/surveillance/met-police-palantir-629642> ; The Nerve (as above).*

[confirmed] The separate, larger deal that *did* go for approval was blocked. The crime-intelligence ambitions sit in a **different** proposal — "**Unified Operational Analytics (UOA)**," worth **£25.3m in 2026/27 with an optional £24.8m extension** (~£50m). That contract **was** put to MOPAC and was **refused by the Deputy Mayor for Policing and Crime (Kaya Comer-Schwartz) on/around 20–21 May 2026**, citing procurement-process failings (the Met having "only engaged with one potential supplier"). Palantir is reported to be moving to sue. *Sources: Novara Media (21 May 2026) — <https://novaramedia.com/2026/05/21/sadiq-khan-blocks-50m-palantir-ai-deal-with-met-police/> ; The Register (28 May 2026) — <https://www.theregister.com/public-sector/2026/05/28/london-cops-post-300m-tech-shopping-list-after-palantir-contract-blocked/5247685> ; Local Government Lawyer — <https://www.localgovernmentlawyer.co.uk/procurement-and-contracts/402-procurement-news/100588-london-mayor-blocks-50m-metropolitan-police-deal-with-us-tech-company-palantir-claiming-met-only-engaged-with-one-potential-supplier>*

The contrast is the story: the **£50m** deal that went through the front door was **stopped** for engaging only one supplier; the **£489,999** pilot — same supplier, same family of technology — went ahead **below the threshold that would have triggered the same scrutiny**.

3. Why £489,999 is the number that matters: the MOPAC oversight threshold

[confirmed] £500,000 is a hard governance line. Under the **MOPAC Scheme of Delegation and Consent (Paragraph 4.8)**, the **Deputy Mayor for Policing and Crime** holds delegated authority to approve, among other things, **the award of contracts with a total value of £500,000 or above**, requests to **go out to tender** at £500,000 or above, and **business cases** for expenditure at that level. Decisions at or above the threshold are taken as **published Policing and Crime Decisions (PCDs)** on the London City Hall website — the mechanism by which the public, the press and the **London Assembly Police and Crime Committee** see and can question MPS contracts. *Source: MOPAC Scheme of Delegation and Consent; MOPAC published decisions (PCDs) — <https://www.london.gov.uk/programmes-strategies/mayors-office-policing-and-crime-mopac/mopac-governance-and-decision-making/mopac-decisions>*

The consequence of splitting the programme. Run as two contracts that individually fall below £500,000 — but together reach it — the programme: - requires **no Deputy Mayor approval** (each contract is treated as sub-threshold); - generates **no published PCD** — so there is **no public decision document**, no stated rationale, no recorded risk assessment in the public domain; - escapes the routine **London Assembly** visibility that PCDs provide; - and, because the *original* value was below £500,000, even the scheme's rule that **extensions** to £500,000-plus contracts need approval (where the extension exceeds 10% or 12 months) **does not bite** — which is why the undisclosed extension could be added without triggering scrutiny either.

In other words, splitting one programme into a ~£10,001 contract and a £489,999 contract does not merely shave a pound off a total. It **switches off the entire public-accountability apparatus** that a single £500,000 contract would have engaged — which is exactly why the law treats *aggregate* value, not the value of each slice, as what counts.

4. The procurement-law dimension: structuring to stay under a threshold is prohibited

[confirmed — legal framework] Authorities must not manipulate or subdivide value to dodge thresholds. The pilot ran in 2026, under the **Procurement Act 2023** (in force from 24 February 2025). **Section 4** requires a contracting authority to estimate a contract's value using the Schedule 3 methodology and **restricts manipulation of the estimated value to avoid the Act's requirements. Schedule 3, paragraph 4** is an express **anti-avoidance** rule: authorities **must not artificially subdivide a procurement** to evade the rules, and must estimate the **maximum** value payable **including options to extend or renew**. Government guidance is explicit that "*rule-avoidance would never be a good reason*" to depart from aggregation. *Sources: GOV.UK, Procurement Act 2023 guidance — "Valuation of Contracts"*

(<https://www.gov.uk/government/publications/procurement-act-2023-guidance-documents-define-phase/guidance-valuation-of-contracts-html>) and "*Thresholds*"

(<https://www.gov.uk/government/publications/procurement-act-2023-guidance-documents-define-phase/guidance-thresholds-html>). The predecessor rule was PCR 2015 reg. 6(3).

Two points follow, and they are questions, not conclusions: 1. The anti-avoidance principle in national procurement law and the MOPAC £500,000 governance line are **distinct** (different figures, different purposes), but they share one logic: **you may not set or split a contract's value to escape the controls that would otherwise apply**. A flagship AI pilot landing at exactly **£1** under the local oversight threshold is precisely the fact-pattern those rules exist to catch. 2. **This is not a borderline case — it is two contracts for one programme**. A ~£10,001 pilot and a £489,999 contract for the same "Unified Data Platform," summing to £500,000, is on its face an **artificial subdivision**: the law required the authority to estimate the **aggregate maximum value** of the programme (including the undisclosed extension), which reaches — and with the extension likely exceeds — £500,000 and engages MOPAC approval. The Met and MOPAC can answer from their own records whether these were properly treated as one procurement; if they were one programme, splitting them is the conduct Schedule 3 paragraph 4 exists to prevent.

5. Why it warrants "going to town" — the propriety questions

- **Oversight was bypassed on the most sensitive possible subject.** This is not stationery. It is AI surveillance of police officers' health, movements and devices, on a US national-security contractor's platform — exactly the kind of high-risk processing for which public scrutiny exists — and it proceeded with none.
 - **The pattern looks like a foot in the door.** A sub-threshold "Phase 1" pilot, then a ~£50m "Unified Operational Analytics" deal. The small one slipped through below the line; the big one was caught and blocked for single-supplier procurement. That sequencing is itself a legitimate scrutiny target.
 - **Commercial-sensitivity was used to withhold the extension cost** — the very figure that would show whether the *total* crossed £500,000.
 - **No published DPIA, ROPA or ethical review** exists for the pilot (covered in the main pack), so the threshold avoidance also removed the document trail that a PCD would normally have surfaced.
 - **The Nolan principles** (openness, accountability) and the public-sector duty of transparency are engaged whether or not any rule was formally broken.
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6. The questions to put, and where

To the Mayor / MOPAC (Mayor's Question Time; London Assembly Police & Crime Committee): 1. **How many separate contracts** were entered into with Palantir for the "Unified Data Platform," what was the **value of each**, and what was the **combined total including any extension** — and why was the programme not let as a single contract? 2. Given that the contracts together total (at least) £500,000, was the value **estimated in accordance with Schedule 3 of the Procurement Act 2023** (which requires aggregation and prohibits artificial subdivision), and on what basis was each contract treated as a separate, below-threshold procurement? 3. Why was a Palantir surveillance pilot of this sensitivity **not** brought to the Deputy Mayor for approval, and **no Policing and Crime Decision published**? 4. Were the UDP pilot and the (blocked) £50m **Unified Operational Analytics** proposal treated as **separate** procurements, and if so, why was aggregation not required?

Written Parliamentary Questions (Home Office / Cabinet Office): 5. What guidance exists to prevent contracting authorities **structuring AI/data-platform contracts to fall below local oversight thresholds**, and how is compliance with the Procurement Act 2023 anti-avoidance rule monitored for police technology?

FOI (to the Met and to MOPAC): 6. The Contracts Finder notice and contract for "Unified Data Platform Phase 1"; the value of the extension; any internal value-estimation/threshold assessment; and any legal/commercial advice on whether MOPAC approval was required.

ICO: whether it has been notified of, or has reviewed, the processing of officers' special-category and location data under the pilot.

7. Honest caveats (so it can't be knocked down)

- **The two-contract structure and figures (~£10,001 + £489,999 = £500,000) are reported / source-derived and must be confirmed against the primary Contracts**

Finder notices before being stated as unqualified fact. Contracts Finder blocks automated access, so I have **not** independently verified each contract's exact value against the government record. **Recommended (two minutes):** search Contracts Finder for "Unified Data Platform" (Metropolitan Police / MOPAC as buyer), confirm **both** notices and their exact values and dates, and capture the notice reference numbers. The split-into-two structure is the heart of this brief, so pin both figures precisely. It is safe to cite **with attribution** as it stands; upgrade to "confirmed against the primary record" only after that check.

- The **extension cost is undisclosed**, so the **aggregate total is not public** — which is itself a finding, and the basis for FOI question 6.
 - **Intent is not established.** The contract came in £1 under the threshold; whether that was deliberate structuring or coincidence is **the question to ask**, not a fact to assert. The anti-avoidance law and the MOPAC scheme are cited to show **why the question is legitimate**, not to allege a breach.
 - This concerns the **Metropolitan Police / Palantir** policing pilot. It is **separate** from the Ministry of Justice's Splink programme (the subject of the main pack) — do not conflate them.
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8. Sources

- The Nerve — Met/Palantir UDP pilot, figures & extension: <https://www.thenerve.news/p/met-police-palantir-officer-ai-surveillance-misconduct-extension-contract-federation>
- Metropolitan Police — "strengthens standards using technology" (the pilot): <https://news.met.police.uk/news/metropolitan-police-strengthens-standards-using-technology-and-new-vetting-powers-508631>
- Silicon UK — officer profiling detail: <https://www.silicon.co.uk/e-regulation/surveillance/met-police-palantir-629642>
- Novara Media — Mayor blocks £50m UOA deal (21 May 2026): <https://novaramedia.com/2026/05/21/sadiq-khan-blocks-50m-palantir-ai-deal-with-met-police/>
- The Register — £300m tech list after Palantir block (28 May 2026): <https://www.theregister.com/public-sector/2026/05/28/london-cops-post-300m-tech-shopping-list-after-palantir-contract-blocked/5247685>
- Local Government Lawyer — Mayor blocks £50m deal (single-supplier): <https://www.localgovernmentlawyer.co.uk/procurement-and-contracts/402-procurement-news/100588-london-mayor-blocks-50m-metropolitan-police-deal-with-us-tech-company-palantir-claiming-met-only-engaged-with-one-potential-supplier>
- MOPAC decisions / Scheme of Delegation and Consent (£500k threshold; PCDs): <https://www.london.gov.uk/programmes-strategies/mayors-office-policing-and-crime-mopac/mopac-governance-and-decision-making/mopac-decisions>
- Procurement Act 2023 guidance — Valuation of Contracts: <https://www.gov.uk/government/publications/procurement-act-2023-guidance-documents-define-phase/guidance-valuation-of-contracts-html>
- Procurement Act 2023 guidance — Thresholds: <https://www.gov.uk/government/publications/procurement-act-2023-guidance-documents-define-phase/guidance-thresholds-html>
- Home Office WPQ UIN 7092 (data categories) and answer: <https://questions-statements-api.parliament.uk/api/writtenquestions/questions?uin=7092&house=Commons>